



Notification Waiver Determination

Coles – land around supermarket site in Balaclava, VIC

Acquisition	Coles Group Property Developments Limited (CGPD), a property development arm of Coles Group Limited (Coles), applied for a notification waiver in respect of CGPD's proposed acquisition of parcels of land located at Nelson Street and Alfred Street, adjacent to the Coles supermarket in Balaclava, Victoria, from the City of Port Phillip, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	23 April 2026

Parties to the Acquisition	Coles is an Australian public company (ASX: COL) that primarily operates: • supermarkets nationwide, and • retail liquor stores nationwide, trading under the Liquorland, Liquorland Warehouse and Liquorland Cellars brands. Coles has a property development arm, CGPD, that buys land and constructs shopping centres, standalone supermarkets and/or liquor outlets and then sells these completed sites to third party buyers. The vendor, the Port Phillip City Council, is the local government authority overseeing the City of Port Phillip, an area in inner Melbourne including the suburbs of Albert Park, Balaclava, Elwood, part of the Melbourne CBD, Middle Park, part of Port Melbourne, Ripponlea, South Melbourne, Southbank, St Kilda, St Kilda East, St Kilda West and Windsor. The target land proposed for sale includes part of the carpark adjacent to the Coles supermarket area enclosed by Carlisle, Alfred, Nelson, and Camden Streets, and some laneways that will be discontinued. The freehold interest would be an input to Coles' supermarket retailing operations.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided by the applicant and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. Coles currently owns the land on which its supermarket in Balaclava is located and the adjacent land that is the subject of the Acquisition is unlikely to be able to accommodate a new supermarket b. the land that is proposed to be acquired will be used to improve the quality of the offering of Coles' existing supermarket in Balaclava c. there are several alternative grocery retailers, including Woolworths, ALDI and IGA, and retail suppliers of packaged liquor for offsite consumption, in and around the local area. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds determined under section 51ABP(1) being met. The ACCC does however observe that the targeted notification requirements for supermarkets determined under section 51ABQ(1) are likely to apply. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
--	---

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act